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DEPARTMENT OF THE NAVY
DIRECTOR STRATEGIC SYSTEMS PROGRAMS
1250 10TH STREET SE, SUITE 3600
WASHINGTON NAVY YARD, DC 20374-5127

J&A No. SPJA25-14
Code: SPN107

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity. Department of the Navy's Strategic Systems Programs Office (SSP) located at the Washington Navy Yard, 1250 10th Street SE, Washington, D.C. 20374.
2. Description of the Action Being Approved. This Justification and Approval (J&A) is for the award of a contract on a sole source basis for capital maintenance of equipment and facilities at the Naval Industrial Reserve Ordinance Plant (NIROP), Pittsfield, Massachusetts, for continued support of the Fleet Ballistic Missile (FBM) Programs (Fire Control and Guidance). The contractor is General Dynamics Mission Systems (GDMS) of 100 Plastics Avenue, Pittsfield, MA. The contract will consist of one base year and one option year.
3. Description of Supplies/Services. Capital Maintenance is work, which is in excess of normal maintenance, that is major rehabilitation, or repair work, which is not repetitive in nature and has a relatively long life span. The submittals are limited to non-severable improvements, repair, or modifications of Navy-owned land, buildings, and support utilities. Exclusions include capital type repairs, modifications, and improvements to Navy-owned machinery and equipment. The Capital Maintenance of NIROP facilities is considered essential for support of the on-going FBM programs at the Pittsfield, Massachusetts facilities. The period of performance of this acquisition is anticipated to be 6 May 2025 to 30 March 2029.

The following table delineates the estimated contract value by appropriation and includes the values of all options. The total value of the authority requested under this J&A in the table below is \$24,085,000. Values are presented in then-year dollars.

Estimated Dollar Value	
Appropriation	FY23 - FY26 Total
Other Procurement, Navy (OPN)	\$12,668,000
Weapons Procurement, Navy (WPN)	\$11,417,000
FY23 - FY26 Total	\$24,085,000

All values set forth above are conditional upon Congressional authorization and appropriation of funds.

4. Statutory Authority Permitting Other Than Full and Open Competition. 10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.
5. Rationale Justifying Use of Cited Statutory Authority.

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a. SSP's Enterprise Infrastructure and Capabilities Branch (SP25) representatives have determined that only the entity having custody of (and using) the NIROP facilities can perform the necessary capital maintenance of NIROP equipment and facilities in the secure, safe, efficient, reliable, and timely manner required by the Government. Due to the sensitive nature of the work conducted within the facilities, sources operating in the facilities to carry out capital maintenance tasks must maintain secret security clearances and the requisite need-to-know, and have the functional and technical expertise to perform tasks in accordance with Department of Defense and Navy unique specifications, such as the Naval Sea Systems Command's OP5 Ammunition and Explosives Safety Ashore specifications. Only GDMS possesses the requisite clearance, need-to-know, and technical expertise.

b. Finally, only performance by the entity having custody of and using the NIROP facilities will result in the certainty required by the Government in tracking responsibility and mitigating production risk related to the facilities and operations performed therein. Capital maintenance performed by another contractor other than GDMS would increase uncertainty and complicate determinations of liability for damage should an accident occur, responsibility for work done should a problem arise at a later date, and responsibility for impact on the production schedule due to maintenance activity.

Consequently, the contractor with custody and overall responsibility of the operation of the NIROP, GDMS, is the only responsible source from which the proposed capital maintenance can be procured.

6. Description of Effort Made to Solicit Offers from as Many Offerors as Practicable.

a. A Sources Sought Notice (SSN), Sources Sought Notice No.: N00030-25-R-1024 was posted to the System for Award Management (SAM) website on 24 September 2024 and closed on 8 October 2024. The SSN sought to identify businesses capable of managing and performing capital maintenance of equipment and facilities at the NIROP facilities located in Pittsfield, MA. SSP received zero (0) responses to the referenced SSN. As a result, SP25 concluded that GDMS is the only entity capable of satisfying the requirement to perform Capital Maintenance of the Pittsfield, Massachusetts NIROP facility.

b. A synopsis in accordance with Federal Acquisition Regulation (FAR) 5.201 was posted to SAM.gov on 27 November 2024 publicizing SSP's intent to award a sole source contract to GDMS to provide the required capital maintenance. The synopsis closed on 12 December 2024; no other potential sources expressed an interest in this requirement. As a result, it was determined that the requirement would be awarded on a sole source basis to GDMS.

c. No additional market research was conducted, as it is not practicable for the reasons identified in this section and section five, that GDMS, as the contractor having custody of and using the NIROP facilities, is uniquely qualified to provide the required capital maintenance. Utilization of an alternative source would represent an untenable impact to the SSP mission and introduce an unacceptable level of risk to the Program.

7. Determination of Fair and Reasonable Cost. The Contracting Officer has determined the anticipated cost to the Government of the supplies and services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition. For the reasons set forth in section 5, and from the lack of results and interest obtained from the Sources Sought Notice, SSP has no plans at this time to compete future contracts for the types of supplies/services covered by this J&A. If another potential source emerges, or further changes to the program are made, SSP will assess whether competition for future requirements is feasible. Additionally, the prime contractor for this effort will continue to utilize competition and commercial procurement for trade specific work to be performed by sub-contractors throughout this contract period. It is further noted that the required work will be conducted in a way that does not preclude a company from participation in downstream capital maintenance efforts. As this is a follow-on for supplies and services previously awarded on a non-competitive basis, in accordance with DFARS PGI 206.304(a)(S-70)(i), the prior J&As were provided to the approval authority for review. Approval of this J&A signifies the approval authority has made the determination required by DFARS PGI 206.304(a)(S-70)(ii).

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:



Signature	Name (Printed)	Phone No.	Date
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Requirements Cognizance:



Signature	Name (Printed)	Phone No.	Date
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LEGAL SUFFICIENCY REVIEW:

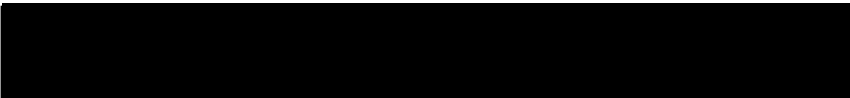
I have determined this Justification is legally sufficient.



Signature	Name (Printed)	Phone No.	Date
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CHIEF OF CONTRACTING OFFICE CERTIFICATION:

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

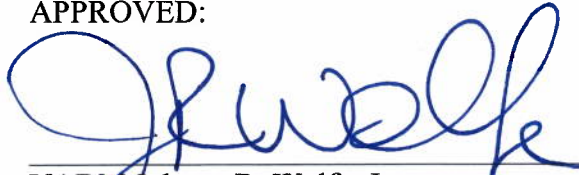


Signature	Name (Printed)	Phone No.	Date
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DIRECTOR, STRATEGIC SYSTEMS PROGRAMS APPROVAL

Upon the basis of the above justification, I hereby approve, as Director, Strategic Systems Programs, the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

APPROVED:


VADM Johnny R. Wolfe, Jr.
Director, Strategic Systems Programs24 JAN 2025
Date